

#	Case Name	Tentative
3	24-01438417	Demurrer to Complaint
	<i>Dinh vs. Pham</i>	Defendants Tuan Pham and Nga Pham’s Demurrer to the Complaint is SUSTAINED without leave to amend. Plaintiff has not properly demonstrated standing pursuant to Code Civil Procedure, section 377.30. “A cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest, subject to Chapter 1 (commencing with Section 7000) of Part 1 of Division 7 of the Probate Code, and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest.” (§ 377.30.) “Successor in interest” is defined as “the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.” Here, both causes of action allege Thuy Bich Hong Dinh is the interested party. Paragraph 13 alleges title should “vest entirely in Thuy Bich Hong Dinh against the adverse claims of Fr. Tue’s heirs.” (Compl., ¶ 13.) Paragraph 17 also alleges Thuy is the sole owner. (Compl., ¶ 17.) Thus, Plaintiff is not the successor in interest under Section 377.30. Therefore, she does not have standing. Additionally, Plaintiff may maintain an action as a personal representative under the Probate Code. “The personal representative has the right to, and shall take possession or control of, all the property of the decedent to be administered in the decedent's estate and shall collect all debts due to the decedent or the estate. The personal representative is not accountable for any debts that remain uncollected without his or her fault.” (Prob. Code, § 9650(a)(1).) Further the representative is authorized to sue without joining the beneficiaries of the estate. (Code Civ. Proc., § 369(a)(1).) A “personal representative” includes an executor. (Prob. Code, § 58(a).) The representative must file a proceeding for the administration of the estate. (Prod. Code, § 8000(a).) Here, Plaintiff has not filed a proceeding. Thus, she is not the personal representative. Therefore, Plaintiff does not have standing. Leave to amend should be granted. Leave to amend should be liberally granted unless the complaint shows on its face that it is unable to be amended. (<i>City of Stockton v. Superior Court</i> (2007) 42 Cal.4th 730, 747.) Plaintiff has not shown how she can amend her Complaint to adequately allege standing.
4	24-01397104	Motion for Leave to File Cross Complaint
	<i>Doyle vs. Waldorf Astoria Monarch Beach & Resort Club</i>	Defendant L.A. Specialty Produce Co., Inc. dba Vesta Foodservice moves for leave to file a cross-complaint against Times Produce, Inc. The unopposed motion is granted. A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). (Code Civ. Proc. § 428.50, subd. (c).) If the proposed cross-complaint is permissive, leave of court may be granted “in the interests of justice” at any time during the course of the action. (<i>Id.</i>) There is a liberal policy regarding the

		filing of cross-complaints. (Weil & Brown, Cal. Prac. Guide, Civ. Proc. Before Trial (Rutter 2024) § 6:557.) Code of Civil Procedure section 428.10 governs permissive cross-complaints. It provides in relevant part: “A party against whom a cause of action has been asserted ... may file a cross-complaint setting forth [¶] ... [¶] (b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him.” (Code Civ. Proc., § 428.10, subd. (b).) Vesta Foodservice proposed Cross-Complaint asserts causes of action for equitable indemnity, apportionment of fault/contribution, and declaratory relief. (ROA 73, Rystad Decl. ¶ 12, Exh. A [Proposed Cross-Complaint].) These claims arise out of the transaction, occurrence, or series of transactions or occurrences as those alleged in Plaintiffs’ Complaint, but will not accrue until Vesta Foodservice suffer actual loss through payment. (E.L. White, Inc. v. City of Huntington Beach (1978) 21 Cal.3d 497, 506.) Accordingly, Vesta Foodservice’s proposed Cross-Complaint is permissive. Vesta Foodservice has not unreasonably delayed in seeking leave to file its proposed Cross-Complaint against Times Produce, Inc. and no prejudice to any party has been identified. The motion is granted. Defendant L.A. Specialty Produce Co., Inc. dba Vesta Foodservice shall give notice and file and serve the Cross-Complaint attached to the Declaration of Ryan L. Rystad as Exhibit A by April 25, 2025.
5	23-01310202 <i>Er vs. Chow</i>	1) Motion to Compel Production 2) Motion to Compel Production 3) Motion to Quash Subpoena <u>Plaintiff’s Motion to Quash</u> Plaintiff/Cross Defendant Piper Er’s Motion to Quash is GRANTED in part, by modifying categories 3-8 to exclude documents or communications which relate to Kent’s representation of Er in her individual capacity and DENIED in part as to categories 1-2 and 9-10. The court “may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (Code Civ. Proc., § 1987.1(a).) Categories 1-2 and 9-10 do not seek documents related to Plaintiff. They solely seek documents regarding Caesar Global. Categories 3-8 similarly seek documents regarding Caesar Global, however, they are overbroad and Er’s privileged documents may also be included. Thus, the Court modifies categories 3-8 to exclude documents or communications which relate to Kent’s representation of Er in her individual capacity.